

**UNITED STATES DISTRICT COURT
DISTRICT OF CONNECTICUT**

LAURA HUGHES	)	
Plaintiff	)	
	)	
v.	)	CIVIL ACTION NO.
	)	
AUSTIN RICE	)	
<u>Defendant</u>	)	

COMPLAINT AND DEMAND FOR JURY TRIAL

PARTIES

1. The plaintiff, Laura Hughes, is an individual residing at 10 Pine Trail in Avon, Connecticut.
2. The defendant, Austin Rice, is an individual whose principal residence is 7701 Salerno Road in Fort Pierce, Florida.

JURISDICTION AND VENUE

3. Subject matter jurisdiction is predicated on 28 USC § 1332, as there is complete diversity between the adverse parties¹, the amount in controversy, exclusive of costs and interest, exceeds \$75,000.
4. Venue is proper, as the plaintiff resides in Hartford County, Connecticut, and the events giving rise to this lawsuit occurred in the State of Connecticut.

¹ Defendant Austin Rice was living with plaintiff temporarily, however his domicile, or the place where he had “his true fixed home and principal establishment, and to which, whenever he is absent, he has the intention of returning,” *See Linardos v. Fortuna*, 157 F.3d 945, 948 (2d Cir. 1998), quoting Wright, Miller *Federal Practice and Procedure* § 3612, at 526 (2d ed.1984), has and is Fort Pierce Florida, as he has since returned home and is living at the address listed in ¶2.

**COUNT I
(NEGLIGENCE)**

5. On or about March 13, 2021, the plaintiff, Laura Hughes, was a passenger in a motor vehicle being lawfully operated by defendant Austin Rice near Exit 12 on Route 2, a public way, in Marlborough, Connecticut.
6. The defendant, Austin Rice, so negligently operated and lost control of the motor vehicle, causing it to strike the guard rail on the left side of the road and then veer across the road to the right side and crash into a concrete traffic barrier.
7. As a result of the negligence of the defendant, Austin Rice, the plaintiff sustained injuries of body and mind, to include traumatic brain injury, tibia fracture, patella fracture, sinus fracture, rib fracture, lacerated thyroid, subarachnoid hemorrhage, subdural hematoma and a subluxation of the C1-C2 vertebrae.
8. As a result of the negligence of the defendant, Austin Rice, plaintiff incurred expenses for medical care and attendance, to date in excess of \$300,000, with significant future expenses anticipated.

WHEREFORE, the plaintiff demands judgment against the defendant, Austin Rice, plus interest and costs of this action.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all claims.

Plaintiff, by her attorneys,

/s/ Ryan P. McLane

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